

Calendar Line 3

Case Name: Capital One, N.A., successor by merger to Discover Bank vs Quang D Nguyen

Case No.: 24CV453256

Motion for summary judgment: notice is proper, and the motion is unopposed. Upon review of the papers, the court concludes that plaintiff has met its initial burden of showing that there is no triable issue of material fact regarding the breach of contract cause of action, and that there is no defense to these causes of action. (Code Civ. Proc. § 437c, subd. (p).) The motion is GRANTED. The court will sign the proposed order and judgment served with the moving papers filed on 3/16/26.

Calendar Line 4

Case Name: *ABEDAYO ABIOYE v. ABRRAHAM CHAPA; VORTEX INDUSTRIES, LLC.*

Case No.: 25CV474504

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ADEAYO ABIOYE,

Plaintiff,

v.

**ABRRAHAM CHAPA; VORTEX INDUSTRIES,
LLC,**

Defendants.

**Case No. 25CV474504
[TENTATIVE] ORDER AFTER
HEARING**

Date: September 16, 2026

Time: 9:00 a.m.

Dept: 16

Line: 4

The following motion came on regularly for hearing on September 16, at 9:00 a.m. in Department 16, Honorable Matthew S. Harris presiding. The matter having been submitted; it is ordered:

Defendant Abraham Chapa's Motion to Deem Requests for Admission, Set One, Admitted came on for hearing on September 16, 2026, in Department 16 of the above-entitled Court.

The Court has considered the moving papers, any opposition and reply, the arguments of counsel, and the records and files in this action.

The Court finds as follows:

1. Requests for Admission

Defendant served Requests for Admission, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve responses to the Requests for Admission. Plaintiff also did not serve a proposed response substantially complying with Code of Civil Procedure section 2033.220 before the hearing on this motion.

Pursuant to Code of Civil Procedure section 2033.280, Plaintiff waived any objections to the Requests for Admission by failing to timely respond. In the absence of a substantially compliant proposed response served before the hearing, the Court is required to order the matters specified in the requests deemed admitted.

Accordingly, Defendant's Motion to Deem Requests for Admission, Set One, Admitted is GRANTED.

The matters specified in Defendant Abraham Chapa's Requests for Admission, Set One, are hereby DEEMED ADMITTED as to Plaintiff Adedayo Abioye.

The admissions shall have the effect provided by the California Code of Civil Procedure and shall remain binding unless withdrawn or amended pursuant to applicable law.

2. Monetary Sanctions

The Court finds that Plaintiff's failure to timely respond to the Requests for Admission necessitated Defendant's motion. Pursuant to Code of Civil Procedure section 2033.280(c), monetary sanctions are therefore warranted.

Defendant requests \$4,560 in attorney fees and costs. The Court finds, however, that the requested amount includes time that appears duplicative of time claimed in connection with Defendant's separate Motion to Compel Responses to Form Interrogatories, Set One, which is being heard on the same date.

The Court therefore awards only reasonable, nonduplicative expenses attributable to this motion.

The Court finds reasonable the following time:

5.0 hours for preparation of the motion;

2.0 hours for preparation of a response to any opposition; and

1.0 hour for attendance at the hearing.

The Court declines to award the additional two hours claimed for preparation for and attendance at the hearing because that time appears duplicative of the hearing time claimed and awarded in connection with the separate motion concerning Form Interrogatories.

At the requested hourly rate of \$375, the allowable attorney fees are:

$8.0 \text{ hours} \times \$375/\text{hour} = \$3,000.00$

The Court further allows the claimed filing fee of \$60.00.

Accordingly, the Court awards Defendant Abraham Chapa \$3,060.00 in monetary sanctions against Plaintiff Adedayo Abioye.

Plaintiff shall pay the sanctions in the amount of \$3,060.00 to Defendant's counsel within 30 days after service of notice of entry of this Order.

3. Basis of Order

The Court's determination that the matters are deemed admitted is based upon Plaintiff's failure to timely respond to the Requests for Admission and the requirements of Code of Civil Procedure section

2033.280. The Court is not independently making factual findings concerning the truth of the matters admitted.

IT IS SO ORDERED.

Dated: _____

JUDGE OF THE SUPERIOR COURT

Matthew S. Harris
Judge of the Superior Court

Calendar Line 5

Case Name: *ABEDAYO ABIOYE v. ABRRAHAM CHAPA; VORTEX INDUSTRIES, LLC,*

Case No.: *25CV474504*

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

ADEAYO ABIOYE,

Plaintiff,

v.

**ABRRAHAM CHAPA; VORTEX INDUSTRIES,
LLC,**

Defendants.

**Case No. 25CV474504
[TENTATIVE] ORDER AFTER
HEARING**

Date: September 16, 2026

Time: 9:00 a.m.

Dept: 16

Line: 5

The following motion came on regularly for hearing on September 16, at 9:00 a.m. in Department 16, Honorable Matthew S. Harris presiding. The matter having been submitted; it is ordered:

Defendant Abraham Chapa's Motion to Compel Responses to Form Interrogatories, Set One, came on for hearing on September 16, 2026, in Department 16 of the above-entitled Court.

The Court has considered the moving papers, any opposition and reply, the arguments of counsel, and the records and files in this action.

The Court finds as follows:

1. Form Interrogatories

Defendant served Form Interrogatories, Set One, on Plaintiff Adedayo Abioye on October 10, 2025. Plaintiff's responses were due on November 12, 2025.

Plaintiff did not timely serve responses to the Form Interrogatories. Defendant thereafter attempted to meet and confer regarding the outstanding discovery, including correspondence dated November 13 and November 19, 2025. Plaintiff did not serve responses following those efforts.

Because Plaintiff failed to timely serve responses, Plaintiff has waived objections to the Form Interrogatories pursuant to Code of Civil Procedure section 2030.290.

Accordingly, Defendant's Motion to Compel Responses to Form Interrogatories, Set One, is **GRANTED.**